

The M.P. Adaptation of Laws (State and Concurrent Subjects) Order, 1956

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State of Madhya Pradesh - Act

The M.P. Adaptation of Laws (State and Concurrent Subjects) Order, 1956

MADHYA PRADESH

India

The M.P. Adaptation of Laws (State and Concurrent Subjects) Order, 1956

Rule THE-M-P-ADAPTATION-OF-LAWS-STATE-AND-CONCURRENT-SUBJECTS-ORDER-1956 of 1956

Published on 1 November 1956

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The M.P. Adaptation of Laws (State and Concurrent Subjects) Order, 1956

Published vide Notification M.P Rajpatra. dated 1-11-1956, pages 1 to 26

Whereas by Section 120 of the State Reorganization Act, 1956 (hereinafter referred to as "the Act"), the appropriate Government is empowered, by Order to make such adaptations and modifications of the law, whether "by way of repeal or amendment, as may be necessary or expedient, for the purpose of facilitating the application of any law in relation to any of the States formed or territories altered by the provisions of Part II of the Act so that every such law shall have effect subject to the adaptations and modifications so made ;

Now, therefore, in exercise of the powers conferred by Section 120 of the Act and all other powers enabling in this behalf the Governor of the State of Madhya Pradesh is hereby pleased to make the following Order, namely:-

1.

(1)

This Order may be called "The Madhya Pradesh Adaptation of Laws (State and Concurrent Subjects) Order, 1956".

(2)

It shall come into force on the first day of November, 1956.

2.

(1)

In this Order-

(a)

"appointed day" means the first day of November, 1956;

(b)

"Bhopal region" means the territories of the State of Bhopal, as existing immediately before the appointed day.

(c)

"existing law" means any law in force immediately before the appointed day in any of the regions forming the State of Madhya Pradesh or part thereof relating to a matter enumerated in the State List or the Concurrent List;

(d)

"law" has the same meaning as in clause (h) of Section 2 of the Act;

(e)

"Madhya Bharat region" means the territories comprised within the State of Madhya Bharat as existing immediately before the appointed day, but excluding the area comprised within Sunel Tappa of Bhanpura Tahsil of Mandsaur district;

(f)

"Mahakoshal region" means the territories comprised within the districts of Jabalpur, Sagar, Damoh, Mandla, Hoshangabad, Narsimhapur, Chhindwara, Seoni, Betul, Nimar, Raipur, Bilaspur, Durg, Bastar, Surguja, Raigarh and Balaghat of the State of Madhya Pradesh as existing immediately before the appointed day;

(g)

"Sironj region" means the area comprised within the Sironj sub-division of the Kotah district in the State of Rajasthan, as existing immediately before the appointed day;

(h)

"Vindhya Pradesh region" means the territories comprised within the State of Vindhya Pradesh, as existing immediately before the appointed day;

(2)

The General Clauses Act, 1897, applies for the interpretation of this Order as it applies for the interpretation of a Central Act.

3.

As from the appointed day, the existing laws mentioned in the Schedule to this Order shall until altered, repealed or amended by a competent legislature or other competent authority, have effect subject to the adaptation and modifications directed by the Schedule or, if it is so directed therein, shall stand repealed.

4.

(1)

Whenever an expression mentioned in column (1) of the Table hereunder printed occurs (otherwise than in a title or preamble or in a citation or description of an enactment) in an existing law, whether an Act, Ordinance or Regulation mentioned in the Schedule to this Order or not, then, unless that expression is by this Order expressly directed to be otherwise adapted or modified, or to stand unmodified, or to be omitted, there shall be substituted therefore the expression set opposite to it in column (2) of the said Table, and there shall also be made in any sentence in which the expression occurs such consequential amendments as the rules of grammar may require :-

(1)

(2)

State of Madhya Pradesh, Madhya Pradesh

Mahakoshal region

Central Provinces & Berar Central Provinces

Mahakoshal region excluding the merged territories.

State of Madhya Bharat Madhya Bharat
Madhya Bharat region.
United State of Vindhya Pradesh, State of Vindhya Pradesh,
Vindhya Pradesh
Vindhya Pradesh region
State of Bhopal, Bhopal
Bhopal region
State of Rajasthan/ Rajasthan
Sironj region
Rajpramukh, Lieutenant Governor, Chief Commissioner
Governor
State Government of Madhya Bharat, Government of Madhya
Bharat
State Government
Court of Judicial Commissioner, Court of the Judicial
Commissioner
The High Court of Madhya Pradesh
Madhya Pradesh Gazette. Madhya Bharat Government Gazette
Madhya Bharat Official Gazette Vindhya Pradesh Government
Gazette
Gazette
Rewa Raj Gazette
Raj Gazette
Bhopal Gazette
Rajasthan Gazette
Government Gazette
Part 'A' State
Part 'B' State
Part 'A' and or Part 'B' State
State
Part 'C' State
Union territory
Part 'A' and 'B' States
States
Part 'A' State or Part 'C' State
A State or Union Territory

(2)

A Direction in the Schedule to this Order that a specified existing law or section or portion of such law shall stand unmodified shall be construed merely as a direction that it is not to be modified or adapted in accordance with the provisions of this paragraph.

4A.

[

[Inserted by M.P.A.L.O. (Second Amendment) Order, 1957. Published in MP Gazette dated 10-5-1957.]

Whenever an expression mentioned in column (1) of the table hereunder printed occurs in any law in force in the Mahakoshal region immediately before the appointed day, then there shall be substituted therefore the expression set opposite to it in column (2) of the said table, and there shall also be made in any sentence in which the expression occurs such consequential amendments as the rules of grammar may require :-

(1)

(2)

Deputy Commissioner

Collector

Additional Deputy Commissioner
Additional Collector
Assistant Commissioner
Assistant Collector
Extra-Assistant Commissioner
Deputy Collector.]

5.

Where this Order requires that in any specified existing law or in any section or other portion of such law, certain words shall be substituted for certain other words, or that certain words shall be omitted, that substitution or omission, as the case may be, shall, except where it is otherwise expressly provided, be made wherever the words referred to occur in that law or as the case may be, in that section or portion.

6.

(1)

The following provisions shall have effect where a existing law which under this Order is to be adapted or modified has before the appointed day been amended either generally or in relation to any particular area, by the insertion or omission of words, or the substitution of words for other words-

(a)

effect shall first be given in the amending law to any adaptation or modification required by paragraphs three and five of this Order to be made therein;

(b)

the original law shall then be amended, either generally or, as the case may be, in its application to the particular area, so as to give effect to the directions contained in the amending law, or where any adaptation or modification has fallen to be made under clause (a), in that law, as so adapted or modified ; and

(c)

all adaptations and modifications required by this Order to be made in the original law shall then be made in that law as so amended, except so far as in the case of any particular area they may be inapplicable.

(2)

In this paragraph, references to the amendment of law by the insertion or omission of words or the substitution of words do not include reference to an amendment which is effected merely by directing that certain words shall be construed in a particular manner.

7.

Notwithstanding any adaptation made by this order, where the extent or application of an existing law in force immediately before the appointed day refers by reason only of such adaptation to the State of Madhya Pradesh, such reference shall not be deemed to include a reference to any part of that State to which that law did not extend or apply immediately before the appointed day.

8.

In any existing law, unless the context otherwise requires,-

(a)

a reference to the Legislature of the State shall be construed as a reference to the Legislature of the State of Madhya Pradesh ;

(b)

a reference to the Speaker or Deputy Speaker of the Legislative Assembly of the State shall be construed as a reference to the Speaker or the Deputy Speaker of the Legislative Assembly of the State of Madhya Pradesh;

(c)

a reference to the Chief Justice or the Judge of the Madhya Bharat High Court or the Rajasthan High Court shall be construed as a reference to the Chief Justice or the Judge of High Court of Madhya Pradesh;

(d)

a reference to the Judicial Commissioner of Bhopal or the Judicial Commissioner of Vindhya Pradesh shall be construed as a reference to the Chief Justice of the High Court of Madhya Pradesh;

(e)

a reference to the Chairman or member of the Public Service Commission, Madhya Bharat shall be construed as a

reference to the Chairman or member of the Public Service Commission of Madhya Pradesh.

9.

Except as otherwise provided by this Order, a reference to any authority, body or tribunal in any existing law shall be construed as a reference to an authority, body or tribunal of the same name or designation in the State of Madhya Pradesh.

10.

Save as otherwise provided by this Order, all powers, which under any existing law were, immediately before the appointed day, vested in or exercisable by any person or authority shall continue to be so vested or exercisable until other provision is made by or under the Act or by the Legislature of the State of Madhya Pradesh or other authority empowered to regulate the matter in question.

11.

(1)

If on the appointed day in any area forming the State of Madhya Pradesh, any body, authority or person entitled by or under any existing law to exercise any rights, powers to jurisdiction or to perform any duties or to discharge any functions or to hold any property, is not or cannot be duly constituted or appointed by reason of the transfer of that area from an existing State to the State of Madhya Pradesh then, notwithstanding anything in such law, but save as expressly provided by or under the Act, all such rights, powers and jurisdiction shall be exercisable, all such duties shall be performed and all such functions shall be discharged by, and all such property shall vest in the State Government.

(2)

Nothing in sub-paragraph (1) shall be deemed to prevent the State Government from duly constituting or appointing for purposes of any such existing law after the appointed day, any body, authority or person to exercise or perform or discharge all or any such rights, powers, jurisdiction, duties or functions or vesting therein all or any part of the property aforesaid.

12.

The provisions of this Order which adapt or modify any law so as to alter the manner in which, the authority by which, or the law under or in accordance with which any powers are exercisable, shall not render invalid any notification, order, license, permission, award, commitment, attachment, bye-law, rule or regulation duly made or issued, or anything duly done, before the appointed day ; and any such notification, order, license, permission, award, commitment, attachment, bye-law, rule, regulation or thing may be revoked, varied, or undone in like manner to the like extent and in the like circumstances as if it had been made, issued or done after the commencement of this Order by the competent authority and under and in accordance with the provisions then applicable to such a case.

13.

Nothing in this Order shall affect the previous operation of, or anything duly done or suffered under, any existing law or any right, privilege, obligation or liability already acquired, accrued or incurred under any such law, or any penalty, forfeiture or punishment incurred in respect of any offence already committed against any such law.

Schedule

Part A ? Madhya Pradesh Acts

[The Public Gambling Act, 1867 (Act III of 1867)]

[These Acts have been now extended to the whole of the Madhya Pradesh vide MP Extension of Laws Act, 1958.]

Section 2. For "within the State" substitute "within the Mahakoshal region".

The Central Provinces Laws Act, 1875 (Act XX of 1875)]

Section 1. - For the words beginning with "It extends" and ending with "Central Provinces" substitute "It extends to the whole of the Mahakoshal region".

Section 4. - For "the territories" occurring twice substitute "the said territories" and omit "which were under the administration of the said State Government" and "now under the administration of the said State Government".

Against Regulations V of 1799 and XI of 1812 in column (4) for "the High Court of Judicature at Nagpur" substitute "the High Court of Madhya Pradesh".

[The Northern India Ferries Act, 1878 (Act XVII of 1878)]

[These Acts have been now extended to the whole of the Madhya Pradesh vide MP Extension of Laws Act, 1958.]

Section 1. - For "the Central Provinces" substitute "the Mahakoshal region".

Section 7-A. - For "in the State" substitute "in the Mahakoshal region".

[The Hackney Carriages Act, 1879 (Act XIV of 1879)]

[These Acts have been now extended to the whole of the Madhya Pradesh vide MP Extension of Laws Act, 1958.]

Section 3. - For "the Central Provinces" substitute "the Mahakoshal region".

[The Vaccination Act, 1880 (Act XIII of 1880)]

[These Acts have been now extended to the whole of the Madhya Pradesh vide MP Extension of Laws Act, 1958.]

Section 1. - For "the Central Provinces" substitute "the Mahakoshal region".

[The Indian Easement Act, 1882 (Act V of 1882)]

Section 1. - For the words beginning with "It extends" and ending with "Coorg" substitute "It extends to the territories of Madras, Mahakoshal region and Coorg".

The Central Provinces Court of Wards Act, 1899

(Act XXIV of 1899)

Section 1. - For sub-section (2), substitute-

"(2) It extends to the whole of the Mahakoshal region; and "

The Central Provinces and Berar General Clauses Act, 1914

(Act I of 1914)

Throughout the Act the expressions "Madhya Pradesh Acts", "Madhya Pradesh Act", "Madhya Pradesh" "Central Provinces" and "Central Provinces and Berar" shall stand unmodified.

Section 2. After the words "made after the commencement of this Act" insert but before the 1st day of November, 1956".

In clause (24-a), for "and after the commencement of the Constitution the Governor of Madhya Pradesh" substitute "and after the commencement of the Constitution but before the 1st day of November, 1956, the Governor of the State of Madhya Pradesh as existing immediately before the said day and on and after that any, the Governor of the State of Madhya Pradesh as formed by the provisions of Part II of the State Reorganisation Act 1956."

In clause (30), for "or an Act made by the Legislature of the State of Madhya Pradesh under the Constitution" substitute "or an Act made under the Constitution by the Legislature of the State of Madhya Pradesh as existing immediately before the 1st day of November, 1956."

Clause (31-a) shall be renumbered as clause (31-b) and before this clause as so renumbered insert-

"(31-a) Mahakoshal region" shall mean the area comprised within the district of Jabalpur, Sagar, Damoh, Mandla, Hoshangabad, Narsimhapur, Chhindwara, Seoni, Betul, Nimar, Raipur, Bilaspur Durg, Bastar, Surguja, Raigarh and Balaghat".

In clause (42), for the words beginning with "or a Regulation" and ending with "to the Constitution" substitute "or a Regulation under Paragraph 5 of the Fifth Schedule to the Constitution made before the 1st day of November, 1956 by the Governor of the State of Madhya Pradesh as existing before the said day and on and after that day by the Governor of the State of Madhya Pradesh as formed by the provision of Part II of the States Reorganisation Act, 1956".

In clause (48-a), add at the end-

"as existing before the 1st day of November, 1956 or of the State of Madhya Pradesh as formed by the provisions of Part II of the State Reorganisation Act, 1956, as the case may be."

[The Central Provinces and Berar Excise Act, 1915

[These Acts have now been extended to the whole of MP by the MP Extraordinary of Laws Act, 1958.]

(Act II of 1915)]

Throughout the Act for State" wherever it occurs otherwise than in conjunction with any other word, substitute "Mahakoshal region".

Section 1. - For sub-section (2), substitute-

(2)

It extends in the first instance to the whole of the Mahakoshal region; and".

Section 25. - In clause (i) of sub-section (3), add at the end "or on any article which has been imported into any part other than the Mahakoshal region of Madhya Pradesh as formed by the provisions of Part II of the State Reorganisation Act, 1956, and on which a duty has already been paid on such importation under any corresponding law in force in that part".

The Central Provinces and Berar Slaughter of Animals Act, 1915

(Act IV of 1915)

Section 1. - For sub-section (2), substitute-

"(2) This Section extends to the whole of the Mahakoshal region ; and the State Government may, by notification, extend, on and from a date to be specified in the notification, the whole or any part of the rest of this Act, to any such local area as it thinks fit".

The Central Provinces and Berar Medical Registration Act, 1916

(Act I of 1916)

Section 1. - For sub-section (2), substitute-

"(2) It extends to the whole of the "Mahakoshal region".

In paragraph (III) the expression "Central Provinces" shall stand unmodified.

In paragraph (III-A) the expression "Madhya Pradesh" occurring twice shall stand unmodified.

Central Provinces Land Alienation Act, 1916

(Act II of 1916)

Section 1. - For sub-section (2), substitute-

"(2) It shall extend only to such areas of the Mahakoshal region as the State Government, may, from time to time, notify in this behalf in the Official Gazette."

The Central Provinces and Berar Courts Act, 1917

(Act I of 1917)

Section 1. - For sub-section (2), substitute-

"(2) It extends to the whole of the Mahakoshal region, and The Nagpur University Act, 1923 (Act V of 1923)

This Act shall stand repealed.

The Central Provinces and Berar Weights and Measures of Capacity Act, 1928

(Act II of 1928)

Section 16. - The expression "Central Provinces" shall stand unmodified.

[The Central Provinces and Berar Borstal Act, 1928

[These Acts have now been extended to the whole of MP by the MP Extraordinary of Laws Act, 1958.]

(Act IX of 1928)]

Section 4. - The "the State" substitute "the Mahakoshal region".

The Central Provinces Irrigation Act, 1931

(Act III of 1931)

Omit Chapter IX-B.

The Central Provinces and Berar Cotton Market Act, 1932

(Act IX of 1932)

Omit Section 21.

The Central Provinces and Berar Debt Conciliation Act, 1933.

(Act II of 1933)

Throughout the Act for the expression "the Central Provinces" wherever it occurs substitute "Mahakoshal region excluding the merged territories".

Section 1. - For sub-section (2), substitute-

(2)

It extends to the whole of the Mahakoshal region excluding the merged territories".

Section 2. - Omit clause (b).

Section 4. In sub-section (1), omit the words beginning with "and in Berar" and ending with "and his creditors".

Section 6. Omit sub-clause (ii) of clause (c) of sub-section (1).

Section 8. - In the proviso to sub-section (1) omit "and in the Berar, shall.

Section 9. In sub-section (3) omit "and in Berar against the debtor or his heirs".

The Central Provinces and Berar State Aid to Industries Act, 1933

(Act XII of 1933)

Section 3. In clause (d) of sub-section (1) omit items (i) and (ii).

Section 7. In clause (aa) of the proviso to clause (b) of sub-section (1) of the State" substitute "of the Mahakoshal region".

In sub-section (2) for "in the State" substitute "in the Mahakoshal region".

The Central Provinces and Berar Agricultural Produce Market Act, 1935

(Act XXIX of 1935)

Omit Section 20.

[The Central Provinces and Berar Probation of Offenders Act, 1936

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act I of 1936)]

Section 8. - For the High Court of Judicature at Nagpur" substitute "the High "Court of Madhya Pradesh".

[The Central Provinces and Berar Agricultural Pests and Diseases Act, 1936

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XXXV of 1936)]

Section 2. - In clause (a) the expression "Madhya Pradesh" shall stand unmodified.

The Nagpur Improvement Trust Act, 1936

(Act XXXVI of 1936)

This Act shall stand repealed.

[The Central Provinces and Berar Co-operative Land Mortgage Banks Act, 1937

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act I of 1937)]

Section 2. In clause (a) for "the Central Provinces and Berar Provincial Co-operative Bank, Limited" substitute "the Mahakoshal Co-operative Bank Limited".

In clause (f) the expression "Madhya Pradesh" shall stand unmodified.

Section 44. - For "the State" substitute "the Mahakoshal region" and for "the Central Provinces and Berar Provincial Co-operative Bank, Limited substitute "the Mahakoshal Co-operative Bank, Limited".

Section 45. - For "Madhya Pradesh Central Land Mortgage Bank, Limited" substitute "Mahakoshal Central Land Mortgage Bank, Limited".

[The Central Provinces and Berar Famine Relief Fund Act, 1937

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958]

(Act 111 of 1937)]

Sections 2 and 3. - The expression "Madhya Pradesh Famine Relief Fund" shall stand unmodified.

Section 4. - The expression "Madhya Pradesh shall stand unmodified.

[The Central Provinces and Berar Recognized Examination Act, 1937

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958]

(Act X of 1937)]

In item 3, the expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Legislative Assembly Committee Summons Enforcement Act, 1937

(Act II of 1937)

This Act shall stand repealed.

[The Central Provinces and Berar Prohibition Act, 1938

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958]

(Act VII of 1938)]

Throughout the Act, for "State" wherever it occurs otherwise than in conjunction with any other word substitute "Mahakoshal region .

Section 1. - For clause (i) of sub-section (3), substitute-

"(i) in the Sagar district, the Narsinghpur sub-division of the Hoshangabad district, and in the towns of Katni-Murwara in the Jabalpur district, with effect from the 1st April, 1938 ; and

The Central Provinces and Berar Collection of Statistics Act, 1939

(Act XXXIV of 1939)

Section 2. - In clause (i), the expression "Madhya Pradesh" shall stand unmodified.

The Berar Laws (Provincial) Act, 1941

(Act XV of 1941)

This Act shall stand repealed.

[The Central Provinces and Berar Regulation of Couching Act, 1944

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958]

(Act II of 1944)]

Renumber Section 1, as sub-section (1) thereof and after sub-section (1) so renumbered, insert-
"(2) It extends to the whole of the Mahakoshal region".

The Nagpur Improvement Trust Tribunal (Validation of Proceeding) Act, 1945

(Act III of 1945)

The Act shall stand repealed.

[The Central Provinces and Berar Epidemic Diseases (Amendment) Act, 1945

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act IV of 1945)]

Section 2. - For "the Central Provinces and Berar" substitute "the Mahakoshal region".

The Central Provinces and Berar Goondas Act, 1946

(Act X of 1946)

Section 4-A. - In the proviso to sub-section (2) for the "State" substitute "Mahakoshal region".

The Central Provinces and Berar Specific Commodities (Control) Act, 1946

(Act XII of 1946)

Section 5. - The expression "Madhya Pradesh" shall stand unmodified.

The University of Sagar Act, 1946

(Act XVI of 1946)

Section 2. - In clause (c-1), the expression "Madhya Pradesh" shall stand unmodified.

Section 20. - In sub-section (I) omit item (v).

Omit Section 58.

[The Central Provinces and Berar Panchayat Act, 1946

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act I of 1947)]

Section 2. - Omit sub-section (3).

Section 7. - Omit the Explanation below sub-section (2).

Section 31-A. - In sub-section (1) omit "the Berar Land Revenue Code, 1928, the Patels and Patwaris Laws, 1900".

Section 40. - Omit sub-section (2).

Section 124. - In clause (i), the expression "Madhya Pradesh" shall stand unmodified.

Section 149. - In sub-section (3) the expression "Madhya Pradesh" shall stand unmodified.

[The Central Provinces and Berar Home Guards Act, 1947

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XV of 1947)]

Section 1. - For clause (ii) of sub-section (3), substitute-

"(ii) at once in the towns of Jabalpur, Saugor, Khandwa, Burhanpur, Raipur, Bilaspur, Chhindwara and Betul".

Section 14. - In clause (b) of sub-section (2) the expression "Madhya Pradesh" shall stand unmodified.

Annexure. - The expression "Madhya Pradesh" shall stand unmodified.

[The Central Provinces and Berar Special Police Establishment Act, 1947

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XVII of 1947)]

Sections 2, 3 and 4. - The expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Sales-tax Act, 1947

(Act XXI of 1947)

Section 2. - In clause (d-1) for [that region]

[Substituted by M.P.A.L.O. (Second Amendment), 1957 for original direction]

" substitute "the State of Madhya Pradesh as formed by the provisions of Part II of the State Reorganisation Act, 1956".

in clause (g)-

"In Explanation (II) for "in this State" wherever it occurs substitute "in the Mahakoshal region".

In Explanation (III) for "in the said State" occurring twice substitute in the said region" and for "in another State" substitute "outside that region".

In paragraph (ii) of sub-clause (a) of clause (j) for State substitute "Region".

In clause (k) expression "Madhya Pradesh" shall stand unmodified.

Section 4. - In sub-section (6), for "State" occurring twice substitute "region".

Section 8. - In sub-section (3), for "State" substitute "region".

The following [New Section 11-C after Section 11-B, insert]

[Inserted by M.P.A.L.O. (Second Amendment) 1957.]

"11-C. Power of Commissioner to assess tax due prior to 1st November, 1956. - Where the amount of the tax due from a dealer for any period prior to the first day of November, 1956, has not been assessed or any turnover has escaped assessment then notwithstanding the re-organisation of States under the States Re-organisation Act, 1956 it shall be competent to the Commissioner to assess or reassess the amount of tax due in accordance with the relevant provisions of this Act, in respect of the sales or purchases made by such dealer within the Mahakoshal region during such period."

Section 12-A. - In the proviso to sub-section (1) for "State" occurring twice substitute "region".

[New Section 27-B after Section 27-A, insert the following:-]

[Inserted by M.P.A.L.O. (Second Amendment), 1957, and shall be deemed to have come into force with effect from 1-11-1956.]

"27-B. Inter region transactions not liable to tax. - Notwithstanding anything contained in this Act, a tax on the sale or purchase of goods shall not be imposed under this Act where such sale or purchase takes place in the course of trade or commerce between a place situated within the Mahakoshal region and a place within the State of Madhya Pradesh outside the said region "

II. - In items 22 and 39 for "State" substitute "Mahakoshal region".

The Central Provinces and Berar Shops and Establishment Act, 1947

(Act XXII of 1947)

Section 1. - In sub-section (3) for "Nagpur, Jabalpur, Raipur, Amaravati and Akola" substitute "Jabalpur and Raipur".

[The Central Provinces and Berar Industrial Disputes Settlement Act, 1947

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XXIII of 1947)]

Section 37-A. - For "for the State" substitute "for the Mahakoshal region".

Section 37-F. - In the proviso to sub-section (2) the expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Refugees Registration and Movement Act, 1947 (Act XXIX of 1947)1 Section 2. - In clause (a) for "this State" substitute "the Mahakoshal region"

Section 3. - For "this State" substitute "the Mahakoshal region".

[The Central Provinces and Berar Cotton Statistics Act, 1947

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XI of 1947)]

Section 2. - In clause (b) the expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Land Survey Act, 1947

(Act XLI of 1947)

Section 2. - In sub-section (1), for "the State" substitute "the Mahakoshal region".

The Central Provinces and Berar Motor Vehicle (Amendment) Act, 1947

(Act III of 1948)

Section 3. - In item (ii) of sub-section (1) of Section 48, for "throughout the State" substitute "throughout the Mahakoshal region" and for "within the State" substitute "within that region".

The Central Provinces and Berar Ayurvedic and Unani Practitioners Act, 1947

(Act IV of 1948)

Section 19. - In clause (a)-

"Madhya Pradesh" occurring for the first time shall stand unmodified.

Section 22. - In sub-section (4) for "State" substitute "Mahakoshal region".

The Nagpur Improvement Trust Tribunal (Validation of Proceedings) Act, 1948

(Act XI of 1948)

This Act shall stand repealed.

The Central Provinces Reclamation of Lands (Eradication of Kans) Act, 1948

(Act XVII of 1948)

Section 1. - For sub-section (2), substitute-

"(2) It extends to the whole of the Mahakoshal region".

The Central Provinces and Berar Cultivation of Fallow Land Act, 1948

(Act XVIII of 1948)

Section 1. - In sub-section (8) for "part of the State" occurring twice substitute "part of the Mahakoshal region".

Section 2. - In clause (e) omit the words beginning with "and in relation to Berar" and ending with "superior holder or his tenant".

The Central Provinces and Berar Revocation of Land Revenue Exemptions Act, 1948

(Act XXXVII of 1948)

Section 1. - For sub-section (2) substitute-

"(2) It extends to the whole of the Mahakoshal region excluding the merged territories".

Section 1. - Omit clause (ii) of sub-section (1).

The Central Provinces and Berar Land Government Act, 1948

(Act XXXVIII of 1948)

Section 2. - In sub-section (2), omit the words beginning with "and in the application of this Act to Berar" and ending with "in that Code".

Section 98. - For "part of the State" substitute "part of the Mahakoshal region".

Section 153. - In clause (a) for "in the State" substitute "in the Mahakoshal region".

[The Central Provinces and Berar Regulation of Uses of Land Act, 1948

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XLVII of 1948)]

Section 4. - In clause (b) of sub-section (1) the expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Commissioners (Constructions of References Act, 1948

(Act LXI of 1948)

Section 2. - For "Nagpur, Jubbulpore, Chattisgarh and Berar" substitute "Jubbulpur and Chhattisgarh".

The Central Provinces and Berar Town Planning Act, 1948

(Act LXVII of 1948)

Section 51. - In sub-section (3) for the words beginning with "the State Government in the City of Nagpur" and ending with the words "as the case may be" substitute "the Commissioner and his decision".

[The Central Provinces and Berar Public Health Act, 1949

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XXXVI of 1949)]

Section 3. - In clause (21) the expression "Madhya Pradesh" shall stand unmodified.

Section 4. - In clause (c) of sub-section (1) the expression "Madhya Pradesh" shall stand unmodified.

Section 76. - In clause (a) omit "Central Provinces and Berar".

Section 82. - For "State" substitute "Mahakoshal region".

Section 155. - The expression "Madhya Pradesh" shall stand unmodified.

[The Central Provinces and Berar Regulation of Waters Act, 1949

[These Acts have now been extended to the whole of MP by MP Extraordinary of Laws Act, 1958.]

(Act XXXVII of 1949)]

Section 12. - The expression "Madhya Pradesh" shall stand unmodified.

The Central Provinces and Berar Animal Preservation Act, 1949

(Act LII of 1949)

Section 6. - For "State" substitute "Mahakoshal region" and the expression "Madhya Pradesh" shall stand unmodified.

The City of Nagpur Corporation Act, 1948

(Act II of 1950)

This Act shall stand repealed.

The City of Jubbulpore Corporation Act, 1948

(Act III of 1950)

Section 56. - In sub-section (2), for "in the State" substitute "in the Mahakoshal region".

Section 109. - In sub-section (2) the expression "Madhya Pradesh" shall stand unmodified.

Section 112. - In sub-section (2) the expression "Madhya Pradesh" shall stand unmodified.

Section 294. - In clause (b) of sub-section (2) add at the end "or in the High Court of Madhya Pradesh or in both".

The Second Schedule. - In item 16, omit "the Berar Cotton and Grain Markets Law".

Madhya Pradesh Payment of Salaries Act, 1950

(Act V of 1950)

This Act shall stand repealed.

Madhya Pradesh Merged States Laws (State) Act, 1950

(Act XII of 1950)

Throughout the Act the expression "The Central Provinces", "The Central Provinces and Berar" and "Madhya Pradesh" shall stand unmodified.

The Madhya Pradesh Live Stock Improvement Act, 1950

(Act XX of 1950)

Section 2. - In clause (c) the expression "Madhya Pradesh" shall stand unmodified.

Section 3. - In sub-section (1) for "part of the State" substitute "part of the Mahakoshal region".

The Madhya Pradesh Official Language Act, 1950

(Act XXIV of 1950)

Section 3 -In sub-section (1) for "State" substitute "Mahakoshal region".

Omit Section 4.

The Nagpur Municipal Committee (Reconstitution and Validation) Act, 1950

(Act XXVII of 1950)

This Act shall stand repealed.

The Madhya Pradesh Contingency Fund Act, 1950

(Act XXXVI of 1950)

This Act shall stand repealed.

The Madhya Pradesh Local Bodies Services Commission Act, 1950

(Act XXXVII of 1950)

Section 2. - Omit "the City of Nagpur Corporation" and "the Nagpur Improvement Trust".

Section 4. - In sub-section (1), for "in the State" substitute "in the Mahakoshal region".

The Madhya Pradesh Housing Board Act, 1950

(Act XLIII of 1950)

Throughout the Act omit "the Improvement Trust" and "Improvement Trust".

Section 2. - Omit clause (4).

Section 4. - In sub-section (1) for "seventeen" substitute "sixteen".

In clauses (j), (k) and (m) for "in the State" substitute "in the Mahakoshal region".

Omit clause (1).

Section 31-A. - Omit "or the Berar Land Revenue Code, 1928, as the case may be" occurring twice.

Section 40. - In the proviso the expression "Madhya Pradesh" shall stand unmodified.

Madhya Pradesh Abolition of Proprietary Rights (Estates, Mahals, Alienated Lands) Act, 1950

(Act I of 1951)

Throughout the Act the expression "Central Provinces" shall stand unmodified.

Section 2. - (i) for clause (a) substitute-

"(a) "Central Provinces" means the Mahakoshal region excluding the area comprised in the merged territories".

(ii)

Omit clauses (d) and (f), sub-clause (3) of clause (g) and sub-clause (iii) of each of clauses (k), (m) and (q) ;

(iii)

In sub-clause (ii) of clause (m) the expression "Madhya Pradesh" shall stand unmodified.

Section 77. - In the proviso to sub-section (1) for "in the State" substitute "in the State of Madhya Pradesh as existing immediately before the 1st day of November, 1956".

Section 83. - After "Central Provinces" insert "and" and omit "and every entry in the record-of-rights in Berar".

1. - Omit Rules 3 and 4 and in sub-rule (1) of Rule 8 omit "and in Berar".

II. - In Rule 2-

(i)

in item (l) omit "Nagpur" and "Wardha".

(ii)

in item (2) omit towns beginning with "Katol" and ending with "Gondia".

III. - In clause (c) of rule (1), for "in the State" substitute "in the State of Madhya Pradesh as existing immediately before the 1st day of November, 1956".

The Madhya Pradesh Secondary Education Act, 1951

(Act XII of 1951)

Section 5. - In clauses (o) and (p) of sub-section (1) for "in the State" substitute "in the Mahakoshal region".

Berar Regulation of Agricultural Leases Act, 1951

(Act XXIV of 1951)

This Act shall stand repealed.

The Madhya Pradesh Homeopathic and Biochemic Practitioners Act, 1951

(Act XXVI of 1951)

Section 19. - In clause (1) the expression "Madhya Pradesh" occurring for the first time shall stand unmodified.

Section 20. - In sub-section (1) for "in any of the State languages" substitute "in any of the languages of the Mahakoshal region".

The Madhya Pradesh Public Trusts Act, 1951

(Act XXX of 1951)

Section 4. - In clause (v) of sub-section (3) for "in the State" substitute "in the Mahakoshal region".

The Madhya Pradesh Local Authorities (Electoral Offences) Act, 1952

(Act XI of 1952)

Section 2. - In sub-clause (a) of clause (2) omit "the City of Nagpur or".

In clause (2) omit "the City of Nagpur Corporation".

In clause (4) omit "the City of Nagpur or".

The Madhya Pradesh Cinemas (Regulation) Act, 1952

(Act XVII of 1952)

Section 4. - In the proviso for "the State" substitute "the Mahakoshal region".

Section 6. - In sub-section (1) for "of the whole State" substitute "of the whole of the Mahakoshal region".

The Madhya Pradesh Suppression of Immoral Traffic Act, 1953

(Act III of 1953)

Section 10. - In sub-section (l) omit "the City of Nagpur Corporation or".

Omit the second entry.

The Madhya Pradesh Recovery of Arrears of Land Revenue and Rent Act, 1953

(Act V of 1953)

Omit Sections 5 and 6.

The Co-operative Societies (Madhya Pradesh Amendment) Act, 1954

(Act VIII of 1954)

Section 3. - In the explanation below sub-section (6) of Section 38-A, for "Madhya Pradesh Co-operative Bank, Limited" substitute "Mahakoshal Co-operative Bank Limited".

The Madhya Pradesh Cotton Control Act, 1954

(Act XVII of 1954)

Section 2. - In clause (c) the expression "Madhya Pradesh" shall stand unmodified.

The Madhya Pradesh Land Revenue Code, 1954

(Act II of 1955)

Throughout the Act for "Central Provinces and merged territories" and "Central Provinces or merged territories" substitute "Mahakoshal region".

Section 2. - In sub-section (1) in clause (23) omit "Nagpur or".

Section 4. - In sub-section (3)-

(i)

in clause (a) omit "of Judicature at Nagpur".

(ii)

in clause (b) omit "in this State".

Section 6. - In sub-section (1) the expression "Madhya Pradesh" shall stand unmodified.

Section 116. - In sub-section (1) omit "and of all survey numbers in Berar".

Section 119. - In the explanation below sub-section (3) omit "in Berar, has been recorded in the record-of-rights and, which".

Section 21. - Omit sub-section (3).

Section 146. - Omit clauses (e) and (f).

Section 147. - Omit clause (d).

Section 166. - Omit "or a protected lessee under the Berar Regulation of Agricultural Leases Act, 1951."

Section 212. - Omit the proviso.

Omit Section 214.

Omit Section 217.

Omit Section 242.

I. - Omit item No. 1.

The Madhya Pradesh National Parks Act, 1955

(Act VII of 1955)

Section 6. - In sub-section (1)-

(i)

the expression "Madhya Pradesh" shall stand unmodified.

(ii)

for item (3), substitute-

"(3) a Conservator of Forests nominated by the State Government" ;

In sub-section (2), for "the Conservator of Forests, Central Circle, Madhya Pradesh" substitute "the Conservator of Forests nominated by the State Government".

Omit description of boundaries relating to Taroba National Park.

The Madhya Pradesh Temporary Postponement of Execution of Decrees Act, 1956

(M.P. Act V of 1956)

Section 2. - In clause (b) omit "protected lessee".

The Madhya Pradesh Khadi and Village Industries Board Act, 1956

(M.P. Act IX of 1956)

Section 34. - In the proviso to sub-section (1) the expression "Madhya Pradesh" shall stand unmodified.

The Berar Regulation of Agricultural Leases (Validation of Decisions) Act, 1956

(M.P. Act XIV of 1956)

This Act shall stand repealed.

The Indira Kala Sangit Vishwavidyalaya Act, 1956

(M.P. Act XIX of 1956)

Section 10. - In sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Section 11 - In sub-section (1), the expression, "Madhya Pradesh" shall stand unmodified.

The Jabalpur University Act, 1956

(M.P. Act XXII of 1956)

Section 9. - In sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Section 10 - In sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Section 22. - In each of the clauses (vii) and (x) of sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Section 25. - In clause (vii) of sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Section 28. - In clause (iv) of sub-section (1), the expression "Madhya Pradesh" shall stand unmodified.

Part B ? Madhya Bharat Acts

[Madhya Bharat Sales Tax Act, Samvat 2007]

[Inserted by M.P.A.L.O. (Second Amendment) 1957 and shall be deemed to have come into force w.G.f. 1-11-1956.]

(Act No. 30 of 1950)

[Section 2. - In Explanation II to clause (o) for "in the said State" occurring twice substitute "in the said region" and for "in another State" substitute "outside that region".]

[Inserted by M.P.A.L.O. (Second Amendment), 1957. and shall be deemed to have come into force w.e.f. 1-11-1956.]

New Section 23-B. - After Section 23-A, insert-

"23-B. Inter-region transactions not liable to tax. - Notwithstanding anything contained in this Act, a tax on the sale or purchase of goods shall not be imposed under this Act where such sale or purchase takes place in the course of trade or commerce between a place situated within the Madhya Bharat region and a place within the State of Madhya Pradesh outside the said region."

The Madhya Bharat Irrigation Act, Samvat 2007

(Act No. XXXIX of 1950)

Section 1. In sub-section (3) for "Government Gazette of the said United State" substitute "Official Gazette."

The Madhya Bharat Secondary Education Act, 1950

(Act No. LI of 1950)

Section 3. - For item 12 of sub-section (1), substitute-

"(12) Representative of Madhya Pradesh Legislative Assembly (to be elected out of the members of the Assembly representing the constituency within territories of Madhya Bharat region)."

[The Madhya Bharat Prisoners Act, Samvat 2007]

[Inserted by M.P.A.L.O. (Second Amendment), 1957. and shall be deemed to have come into force w.e.f. 1-11-1956.]

(No. LVI of 1950)

Section 6. - In clause (a) for "Provincial" substitute "State".

In clause (b) for "Indian State or States Union" substitute "State or Union Territory".

Section 19. In sub-section (1) omit "Provincial or" and for "Province or State" substitute "State or Union Territory".

Section 20. In sub-section (4) for "any other Province or State or within the Union by agreement with the Provincial or State Government of such other Province or State or with the Union" substitute "any other State or Union territory by agreement with the State Government concerned or the Central Government".

Section 24. In sub-section (2) for "Province or State by agreement with Provincial or State Government of that Province or State" substitute "State or Union territory by agreement with the State Government concerned or the Central Government, as the case may be".]

The Madhya Bharat Ferries Act, 1950

(No. LXXI of 1950)

Section 14 - For the words "Madhya Bharat" substitute "Madhya Pradesh".

The Madhya Bharat Police Act, 1950

(No. LXXVI of 1950)

Section 10. - For the words "Madhya Bharat" substitute "Madhya Pradesh".

Section 11. - For the words "Madhya Bharat" substitute "Madhya Pradesh".

The Madhya Bharat General Clauses Act, 1950

(No. LXXXIV of 1950)

Section 3. - In clause (48) for the words "the State of Madhya Bharat" substitute the words "the State of Madhya Pradesh".

The Madhya Bharat Game Act, 1952

(No. X of 1952)

Section 9. - Omit comma and the word "Rajpramukhs" occurring after the words "President of India".

The Madhya Bharat Indian Medicines Act, 1952

(No. XXVIII of 1952)

Section 27. - In clause (a) of sub-section (1) for "Madhya Bharat" substitute ' Madhya Pradesh".

The Madhya Bharat Municipalities Act, 1954

(No. I of 1954)

Section 50. - In sub-section (2) for the words "State of Madhya Bharat" substitute "State of Madhya Pradesh".

[The Madhya Bharat Co-operative Societies Act, 1955

[Inserted by M.P.A.L.O. (Second Amendment). 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

(No. IX of 1955)

Section 79. - For "Madhya Bharat State" occurring for the first time substitute "State of Madhya Pradesh" and for "Madhya Bharat State" occurring twice thereafter substitute "Madhya Bharat Region"]

The Madhya Bharat Vikram University Act, 1955

(No. VIII of 1955)

Section 8. - For the words "Rajpramukh of Madhya Bharat" substitute "Governor of Madhya Pradesh".

Section 16. - In item Nos. 5 to 8 and 9 to 11 substitute "Madhya Pradesh" for "Madhya Bharat".

Section 19. - In item (3) substitute "Madhya Pradesh" for "Madhya Bharat".

Part C ? Vindhya Pradesh Acts

The Rewa State Excise Act, 1921

Section 1. - In sub-section (2) for "the State" substitute "the Vindhya Pradesh region".

Section 3. - [In clause (3) for "Deputy Commissioner" substitute "Collector"]

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

In each of the clauses, namely clause (26), clause (27) and clause (28) for "the State" substitute "the Vindhya Pradesh region".

Section 9. - In sub-section (3), for "the State" substitute "the Government".

[Section 12. - For "Deputy Commissioner" occurring twice substitute "Collector".]

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

Sections 17, 19 and 20. - For "in the State" substitute "in the Vindhya Pradesh region".

Section 29. - In the Explanation, for "State" substitute "Government". Section 46. - For "the State" substitute "the State Government".

[The Rewa State Prosecution of Public Servants Act, 1927]

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

This Act shall stand repealed.

The United Provinces Opium Smoking Act, 1934

(U.P. Act III of 1934)

(As modified and extended to Vindhya Pradesh)

Throughout the Act for "Deputy Commissioner" wherever occurring substitute "Collector".

The Rewa State Ferries Act, 1935.

Throughout the Act for "Chief Revenue Authority" substitute "Board of Revenue".

Omit Section 25.

Section 30. - For "officers or troops of Rewa Durbar on duty" substitute "armed forces of the Union", and for "such officers, troops" substitute "such forces".

The Rewa State Juvenile Smoking Act, 1937

Section 1. - In the proviso to sub-section (2) for "in the State" substitute "in the Vindhya Pradesh region."

The Rewa State Municipalities Act, 1946

Section 3. - For clause (2a) substitute-

"(2a) "Assembly roll" means the electoral roll for the time being in force of a Legislative Assembly constituency of the Legislative Assembly of Madhya Pradesh prepared in accordance with the provisions of the Representation of the People Act, 1950 (XLIII of 1950)."

Omit clause (10).

For clauses (32a) and (32b) substitute-

"(32a) "Scheduled Castes" means the Scheduled Castes in the Madhya Pradesh region specified in Part IX of the Schedule to the Constitution (Scheduled Castes) (Part 'C' States) Order, 1951.

(32b)

"Scheduled Tribes" means the Scheduled Tribes in the Vindhya Pradesh region specified in Part VIII of the Schedule to the Constitution (Scheduled Tribes) (Part 'C' States) Order, 1951." Sections 262, 263 and 267. - For "as applied to the State" substitute "as applied to the Vindhya Pradesh region."

Section 302. - Omit "any and as adopted by the State or".

Section 304. - In clause (d) of sub-section (6) omit "His Highness Government".

The Rewa State Pre-emption Act, 1946

Section 6. - For "Durbar Order" substitute "Government Order".

The Rewa State Local Fund Audit Act, 1948

Throughout the Act for "the Government" substitute "the State Government".

Section 1. - In sub-section (ii) for "Rewa State" substitute "Vindhya Pradesh region."

Section 2. - For clause (i) substitute-

"(i) "Auditor" means an auditor appointed by the State Government to perform the functions of an auditor under this Act."

The Vindhya Pradesh (Application of Laws) Ordinance, 1949

(XI of 1949)

Omit entries relating to items 1, 2, 3 and 5 to 25.

[The Vindhya Pradesh Co-operative Societies Ordinance, 1949

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

(No. XXI of 1949)]

Section 3. - Omit "for whole of the Vindhya Pradesh".]

The Vindhya Pradesh Gram Panchayat Ordinance

Section 66. - In sub-clause (3), omit "United".

The Vindhya Pradesh Motor Vehicles Act, 1943

Section 7. - In sub-section (2) for "Vindhya Pradesh" substitute "State".

The Central Provinces and Berar Regulation of Letting of Accommodation Act, 1946

(C.P. and Berar Act XI of 1946)

As mollified and extended to Vindhya Pradesh

Section 1. - In sub-section (3) omit "of Vindhya Pradesh"

Central Provinces and Berar Sales Tax Act, 1947

(C.P. and Berar Act XXI of 1947)

As modified and extended to Vindhya Pradesh

Section 1. - In sub-section (3) for "Central Government" substitute "State Government".

In clause (j)(a)(iia), for "in a State other than Vindhya Pradesh" substitute "outside the Vindhya Pradesh region".

In clause (k) for "Vindhya Pradesh" substitute "Madhya Pradesh".

Section 15-A. - For "Vindhya Pradesh" substitute "the State".

[New Section 27-B. - After Section 27-A, insert-]

[Inserted by M.P.A.L.O. (Second Amendment) 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

"27-B. Inter-region transactions not liable to tax. Notwithstanding anything contained in this Act, a tax on the sale or purchase of goods shall not be imposed under this Act where such sale or purchase takes place in the course of trade or commerce between a place situated within the Vindhya Pradesh region and a place within the State of Madhya Pradesh outside the said region".

The United Provinces Agricultural Income-tax Act, 1948

(U.P. Act III of 1948)

As modified and extended to Vindhya Pradesh

Section 2. - In clause (7) for "Vindhya Pradesh" substitute "Madhya Pradesh".

Section 13. - For "State" occurring twice substitute "Vindhya Pradesh region".

The United Provinces Opium Act, 1934

(U.P. Act III of 1934)

As modified and extended to Vindhya Pradesh

Sections 26 and 27. - For "Secretary of State for India in Council" substitute "State Government".

The Madhya Pradesh Live-Stock Improvement Act, 1950

(M.P. Act XX of 1950)

As modified and extended to Vindhya Pradesh

Section 3. - In sub-section (1) for "State" substitute "Vindhya Pradesh region".

The Vindhya Pradesh Primary Education Act, 1952

(V.P. Act IV of 1952)

Section 2. - Omit "of the Vindhya Pradesh" and "of Vindhya Pradesh" wherever they occur.

The Vindhya Pradesh Water Rates Act, 1952

(V.P. Act V of 1952)

Section 2. - Omit clause (g).

The Vindhya Pradesh Ministers, Speakers, Deputy Speakers and Members of Legislative Assembly's (Salary and Allowances) Act, 1952

(V.P. Act X of 1952)

This Act shall stand repealed.

The Amarkantak Township Development Board Act, 1952

(V.P. Act X of 1952)

Section 4. - In sub-section (1) for "Vindhya Pradesh Legislative Assembly" substitute "Madhya Pradesh Legislative Assembly".

The Vindhya Pradesh Abolition of Jagirs and Land Reforms Act, 1952

Section 42. - In sub-section (3), for "Vindhya Pradesh Legislative Assembly" substitute "Madhya Pradesh Legislative Assembly".

The Vindhya Pradesh Requisitioning and Acquisition of Immovable Property Act, 1953

(V.P. Act IV of 1953)

Section 2. - Omit clause (h).

Section 17. - In sub-section (2) for "Legislative Assembly of Vindhya Pradesh" substitute "Madhya Pradesh Legislative Assembly".

Section 22. - In sub-section (3) for "Legislative Assembly of Vindhya Pradesh" substitute "Madhya Pradesh Legislative Assembly".

The Vindhya Pradesh General Clauses Act, 1953

(V.P. Act VI of 1953)

Throughout the Act "Vindhya Pradesh Act" shall stand unmodified.

Section 2. - For Clause (4) substitute-

(4)

Board of Revenue" shall, in relation to anything done before the 1st day of November, 1956, means the Board of Revenue for Vindhya Pradesh and in relation to anything done or to be done on and after that day mean the Board of Revenue for Madhya Pradesh."

For Clause (8) substitute-

(8)

Court of the Judicial Commissioner" in relation to anything done before the 1st day of November, 1956, means the "Court of the Judicial Commissioner, Vindhya Pradesh, and includes the Court of the Additional Judicial Commissioner, if any, and in relation to the anything done or to be done on and after that day means the High Court of Madhya Pradesh."

For Clause (16) substitute-

"(16) Gazette or Official Gazette" shall, in relation to any period before the 1st day of November, 1956 means the Official Gazette of Vindhya Pradesh and in relation to any period on and after that day means the "Official Gazette of Madhya Pradesh."

After Clause (16) insert-

"(16-a) "Governor" means the Governor of Madhya Pradesh."

After Clause (17) insert-

"(17-a) "High Court" shall mean "the High Court of Madhya Pradesh."

After Clause (20) insert-

"(20-a) "Madhya Pradesh" shall mean the State of Madhya Pradesh as formed by the provisions of Part II of the State Reorganisation Act, 1956 (XXXVII of 1956);"

For Clause (35) substitute-

"(35) "State Government" in relation to anything done before the 1st day of November, 1956 means the Lieutenant Governor of Vindhya Pradesh and in relation to anything done or to be done on and after that day means the Governor of Madhya Pradesh."

For Clause (39) substitute-

"(39-a) "Vindhya Pradesh region" or "Vindhya Pradesh" means the territories comprised within the State of Vindhya Pradesh as existing immediately before the 1st day of November, 1956".

Clause (40). - The expression "Vindhya Pradesh" shall stand unmodified.

The Vindhya Pradesh Contingency Fund Act, 1954

(V.P. Act VIII of 1954)

This Act shall stand repealed.

The Vindhya Pradesh Land Revenue and Tenancy Act, 1953

(V.P. Act III of 1955)

Section 6. - For "Vindhya Pradesh Legislative Assembly" substitute "State Legislature."

Section 11. - For "any Central and Vindhya Pradesh Act" substitute "any law for the time being in force."

Section 18. - For "the State" substitute "the Vindhya Pradesh region".

Section 56. - For "Vindhya Pradesh" substitute "Vindhya Pradesh region or any part thereof."

The Vindhya Pradesh Bhoodan Yagna Act, 1955

(V.P. Act I of 1956)

Section 3. - Omit "Vindhya Pradesh".

Part 'D' Bhopal Acts

The Bhopal State Prevention of Begging Act, 1917

(V of 1917)

Section 3. - For "State" substitute "Bhopal region".

The Bhopal State Protection of Orphans Act, 1930

(No. II of 1930)

Section 5. - For the words "in the State" wherever they occur substitute "in the Bhopal Region."

Section 9. - In sub-section (3), for "within the state" substitute "within the Bhopal Region."

The Bhopal State Wild Birds and Animals Act, 1930

(III of 1930)

Section 2. - For the words "within the State" wherever they occur, substitute the words "within the Bhopal region."

Sections 4 and 5. - For "State" wherever it occurs, substitute "Bhopal region".

The Bhopal State Land Revenue Act, 1932

(IV of 1932)

Throughout the Act, for "Chief Commissioner" substitute "State Government".

Section 2. - Omit sub-section (16a).

Section 161. - Omit clause (b) and the proviso.

Section 167. - Omit the words "Jagirdar or", wherever they occur, and the words "otherwise then by an operation of the Court of Wards Act".

Section 169. - In sub-sections (1) and (2) omit the words "Jagir or" wherever they occur.

Omit Sections 168 and 170 to 187 (both inclusive).

Section 188. - In sub-section (2), omit the first proviso and in the second proviso omit "further".

Section 200. - In sub-section (2), omit clause (r) and in clause (u) omit "Jagir or".

Section 202. - In sub-section (b) omit entries No. (30), (40) and (41).

I. - Omit entries No. (35), (36), (37) and (38).

II. - Omit serial No. 9.

Bhopal State Medical Practitioners Registration Act, 1935

(VII of 1935)

Section 4. - In clause (a) for entries No. (1), (2) and (3) under the heading Ex Officio members, substitute-
"(1) Director of Health Services.

(2)

The Superintendent of Hamidia Hospital.

(3)

The Superintendent of Sultania Zanana Hospital".

The Bhopal State Co-operative Societies Act, 1937

(XI of 1937)

[Section 40.

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956]

- In clause (e) of sub-section (1) for "Bhopal State" substitute "State of Madhya Pradesh".]

Section 76. - In sub-section (1) for "State" substitute "Bhopal region".

The Bhopal State Town Improvement Act, 1938

(VI of 1938)

Section 68. - In clause (c) of sub-section (3) for "Secretary of State for India in Council" substitute "Government of India".

In clause (d) of sub-section (3) omit "or of Great Britain".

The Bhopal State Maternity Benefit Act, 1943

(XII of 1943)

Section 15. - After "Urdu" insert "or Hindi".

The Bhopal State Irrigation Act, 1952

(VI of 1952)

Section 20. - Omit "Bhopal State, P.W.D."

The Bhopal State Panchayat Raj Act, 1952

(II of 1953)

Section 2. - Omit clause (x).

The Bhopal State Fisheries Act, 1952

(V of 1953)

Section 1. - In sub-section (3), for "Chief Commissioner" substitute "State Government".

Section 2. - Omit clause (v).

The Bhopal State Ministers and Deputy Ministers (Salaries and Allowances) Act, 1953

(VIII of 1953)

This Act shall stand repealed.

The Bhopal State Agricultural Income-Tax Act, 1953

(IX of 1953)

Section 2. - Omit clause (16).

The Bhopal State Abolition of Jagirs and Land Reforms Act, 1953

(X of 1953)

Section 2. - Omit clause (XVII).

The Bhopal State (Places of Public Entertainment) Prohibition of Smoking Act, 1953

(XIV of 1953)

Section 2. - Omit clause (d).

The Bhopal State Weights and Measures Act, 1953

(XV of 1953)

Section 3. - Omit Clause (IX).

The Bhopal State Prevention of Gambling Act, 1953

(XVI of 1953)

Section 2. - Omit clause (d).

The Bhopal State Legislative Assembly (Speakers', Deputy Speakers' and Members' Salaries and Allowances) Act, 1954

(I of 1954)

This Act shall stand repealed.

The Bhopal State Animal Preservation Act, 1954

(VII of 1954)

Section 3. - Omit clause (iv).

The Bhopal State Contingencies Fund Act, 1954

(IX of 1954)

This Act shall stand repealed.

The Bhopal State Entertainment Duty Act, 1954

(XI of 1954)

Section 2. - Omit clause (d).

The Bhopal State Reclamation and Development of Lands (Eradication of Kans) Act, 1954
(XII of 1954)

Section 2. - Omit clause (g).

The Bhopal State Town Area Act, 1954
(XIV of 1954)

Section 2. - Omit clause (ii).

The Bhopal State Sub-tenants (or occupant) Protection Act, 1955
(I of 1955)

Section 2. - Omit clause (a).

The Bhopal State Anatomy and Pathology Act, 1955
(XII of 1955)

Section 2. - Omit clause (g).

The Bhopal State Municipalities Act, 1956
(III of 1956)

Section 2. - Omit clause (22).

The Bhopal State Debt Redemption Act, 1955
(V of 1956)

Section 2. - Omit clause (15).

The Bhopal State Excise Act, 1955
(VI of 1956)

Throughout the Act, for the words "Chief Commissioner" substitute the words "State Government".

Section 3. - Omit clause (ii).

The Bhopal State Prohibition of Drinking of Liquor at Public Places and Public Functions Act, 1956
(IX of 1956)

Section 2. - Omit clause (f).

The Bhopal State Compulsory Primary Education Act, 1956
(XI of 1956)

Section 2. - Omit clause (11).

Part 'E' Rajasthan Acts In Force In Sironj Region
The Rajasthan Gazette (Raj Patra) Ordinance, 1949
(Rajasthan Ordinance II of 1949)

It shall stand repealed.

The Rajasthan Appeals and Petitions (Discontinuance) Ordinance, 1949
(Rajasthan Ordinance XL of 1949)

Section 4. - In clause (a) of sub-section (1) for "by the High Court of Judicature for Rajasthan established under the Rajasthan High Court Ordinance, 1949" substitute "the High Court of Madhya Pradesh".

The Rajasthan Court Fees Act (Adaptation) Ordinance, 1950
(Rajasthan Ordinance IX of 1950)

Section 5. - In clause (iv) for "Board of Revenue for Rajasthan established under the Rajasthan Board of Revenue Ordinance, 1949" substitute "the Board of Revenue for Madhya Pradesh".

The Rajasthan Motor Vehicles Taxation Act, 1951
(Rajasthan Act XI of 1951)

Section 14. - For the words "Director of Transport for Rajasthan" in this section or wherever occurring in the said Act, substitute "Transport Commissioner or such officer as may be appointed by the Government in this behalf".

I. - In the Note appearing in sub-division 'B' of the Schedule, the word 'Rajasthan' occurring in the first line shall remain unmodified.

The Rajasthan Ministers' Salaries Act, 1951
(Rajasthan Act XIX of 1951)

This Act shall stand repealed.

The Rajasthan Town Municipalities Act, 1951

(Rajasthan Act XXIII of 1951)

Section 59. - In clause (e) of the proviso for "Rajasthan Police Force" substitute "police force of the State of Madhya Pradesh".

The Rajasthan Land Reforms and Resumption of Jagirs Act, 1952

(Rajasthan Act VI of 1952)

Section 2. - For clause (c), substitute the following-

"(c) "Board" means the Board of Revenue for the State of Madhya Pradesh, or such other authority as the State Government may specify as the authority competent to exercise the powers and discharge the functions of Board under this Act".

The Rajasthan Medical Act, 1952

(Rajasthan Act XIII of 1952)

After Section 16, insert the following section-

"16-A. Register-contents of. - (1) The register for the Sironj region shall contain particulars in respect of registered practitioners in that region.

(2)

(a)

If, immediately before the 1st day of November, 1956 there is in existence a register prepared under this Act as then in force a fresh register for the Sironj region shall be prepared by copying out the entries made in the former register in respect of the said practitioners and the register so prepared shall, notwithstanding anything in this Act, be deemed to be the Register prepared in accordance with this Act, subject to any alterations that may be made therein in accordance with the provisions of this Act.

(b)

Until a fresh register is so prepared, the register, if in existence as aforesaid, shall, in so far as it relates to the said practitioners, be deemed to be the register for the Sironj region".

The Rajasthan Legislative Assembly (Officers and Members Emoluments) Act, 1952

(Rajasthan Act XV of 1952)

This Act shall stand repealed.

The Rajasthan Cinemas (Regulation) Act, 1952

(Rajasthan Act XXX of 1952)

Section 2. - In clause (d) of sub-section (1), for "Government of State of Rajasthan" substitute "State Government of Madhya Pradesh".

The Rajasthan Co-operative Societies Act, 1953

(Rajasthan Act IV of 1953)

Section 6. - Omit "for Rajasthan".

[Section 83. - After sub-section (4), add the following sub-section:-

"(5) The provisions of this section do not apply to a co-operative society registered outside the Sironj region but within the State of Madhya Pradesh."]

[Inserted by M.P.A.L.O. (Second Amendment), 1957 and shall be deemed to have come into force w.e.f. 1-11-1956.]

The Rajasthan Indian Medicine Act, 1953 (Rajasthan Act V of 1953)

After Section 37, insert the following Section :-

"37-A. Contents of Registers and lists for Sironj region. - (1) The registers and lists for the Rajasthan area shall contain the particulars in respect of practitioners or other persons, as the case may be, in the Sironj region.

(2)

(a)

If, immediately before the 1st day of November, 1956 there is, in existence, any register or list prepared under this Act as then in force a fresh register or list for the Sironj region shall be prepared by copying out the entries made in the former register in respect of the said practitioners or other persons, and the register or list so prepared shall, notwithstanding anything in this Act, be deemed to have been prepared in accordance with this Act, subject to any alterations that may be made therein in accordance with the provisions of this Act.

(b)

Until a fresh register or list is so prepared, the register or list, if any in existence as aforesaid, shall, in so far as it relates

to the said practitioners or other persons, be deemed to be the register or list for the Sironj region."

The Rajasthan Legislative Assembly Members (Removal of Disqualification) Act, 1953 (Rajasthan Act XIV of 1953)

This Act shall stand repealed.

The Rajasthan Agricultural Income-tax Act, 1953

(Rajasthan Act XXIII of 1953)

Section 6. - In the Explanation appearing below the first proviso to clause (c), for "Accountant-General, Rajasthan" substitute "Accountant General, Madhya Pradesh".

The Rajasthan Bhoodan Yagna Act, 1954

(Rajasthan Act XVI of 1954)

Section 2. - For clause (k), substitute the following-

"(k) "State Government" means the State Government of Madhya Pradesh".

The Rajasthan Buildings and Places Act, 1954

(Rajasthan Act XVIII of 1954)

Section 4. - For clause (i), substitute the following :-

"(i) "Board" means the Board of Revenue for Madhya Pradesh, or such other authority as the Government of Madhya Pradesh may specify as competent to exercise the powers and discharge the functions of the Board under this Act".

The Rajasthan Sales Tax Act, 1954

(Rajasthan Act XXIX of 1954)

Section 6. - Omit "for Rajasthan"

(i)

for the direction relating to Section 2, substitute-

["Section 2-In Explanation 2 to clause (o) for "in the State" substitute "in the Sironj region", for "in the said State" occurring twice substitute "in the said region" and for "in another State" substitute "outside that region".

New Section 10-A. - After Section 10, insert-

"10-A. Power of Commissioner to assess or re-assess tax prior to 1st November, 1956. - Where the amount of the tax due from a dealer for any period prior to the 1st day of November, 1956 has not been assessed or any turnover has escaped assessment then notwithstanding the reorganization of States under the States Reorganization Act, 1956, it shall be competent to the Commissioner to assess or reassess the amount of tax due in accordance with the relevant provisions of this Act, in respect of the sales or purchases made by such dealer within the Sironj region during such period."

New Section 25-A. - After Section 25, insert-

"25-A. Inter-region transactions not liable to tax. - Notwithstanding anything contained in this Act, a tax on the sale or purchase of goods shall not be imposed under this Act, where such sale or purchase takes place in the course of trade or commerce between place within the Sironj region and a place within the State of Madhya Pradesh outside the region".]

[Inserted by M.P.A.L.O. (Second Amendment), 1957.]

The Rajasthan Tenancy Act, 1955

(Rajasthan Act 3 of 1955)

Section 5. - (i) For sub-section (6), substitute the following :-

"(6) "Board" shall mean the Board of Revenue for the State of Madhya Pradesh or such other authority as the Government may specify as competent to exercise the powers and discharge the functions of the Board under this Act."

(ii)

For sub-section (16), substitute the following :-

"(16) "High Court" shall mean the High Court of Madhya Pradesh;"

(iii)

For sub-section (40), substitute the following :-

"(40) "Sub-Divisional Officer" shall mean a Revenue Officer placed in charge of one or more sub-divisions under any law for the time being in force

The Rajasthan General Clauses Act, 1955

(Rajasthan Act 8 of 1955)

Section 32. - In sub-section (1),-

(i)

For clause (5), substitute the following :-

"(5) 'Board' or 'the Board' or 'the Board of Revenue' or 'the Revenue Board' shall mean the Board of Revenue for the State of Madhya Pradesh or such other authority as the Government may specify as competent to exercise the powers and discharge the functions of the Board of Revenue under the law concerned."

(ii)

For clause (18), substitute the following :-

"(18) 'district' shall mean the territorial limits of a district in which the Sironj region is comprised under the administrative charge of a Collector, as formed or deemed to be formed under the law for the time being in force."

(iii)

For clause (36), substitute the following-

"(36) 'High Court' shall mean the High Court of Madhya Pradesh".

(iv)

For clause (42), substitute the following :-

"(42) 'Legislative Assembly' or 'State Legislative Assembly' shall mean the Legislative Assembly for the State of Madhya Pradesh.

(v)

Omit clause (45) ;

(vi)

In clause (51), for sub-clause (b), substitute the following :-

"(b) as respects any period after such commencement but before 1st day of November, 1956 an Ordinance made and promulgated by the Rajpramukh under the Constitution."

(vi)

For clause (62), substitute the following :-

"(62) 'Rajasthan' shall, as respects any period before the 1st day of November, 1956, mean the State of Rajasthan as then constituted."

(viii)

In clause (63), in sub-clause (i), for the words and figures "the seventh day of April, 1949" substitute the words and figures "the seventh day of April, 1949, but before the 1st day of November, 1956

(ix)

For clause (64), substitute the following :-

"(64) 'Rajasthan State Legislature' or 'State Legislature' shall mean-

(i)

as respects the period before the State Legislative Assembly was duly constituted and summoned to meet for the first session the Rajpramukh acting under the covenant or under Article 385 of the Constitution.

(ii)

as respects any later period, being a period before the 1st day of November, 1956, the Rajpramukh and the State Legislative Assembly".

(x)

For clause (65), substitute the following :-

"(65) 'Rajpramukh' shall, as respects any period before the 1st day of November, 1956, mean the person who is for the time being the Rajpramukh of Rajasthan".

(xi)

After clause (75), insert the following :-

"(74-A) 'Sironj region' shall mean the area in the State of Madhya Pradesh which, immediately before the 1st day of November, 1956, was comprised within the Sironj sub-division of the State of Rajasthan as then constituted.

The Rajasthan Land Revenue Act, 1956

(Rajasthan Act 15 of 1956)

Section 4. - After sub-section (4), insert the following :-

"(4-A) Notwithstanding anything contained in this Act, the powers and functions of the Board of Revenue shall, with effect from 1st day of November, 1956, be discharged by the Board of Revenue for the State of Madhya Pradesh or by

such other authority the Government may specify as competent to exercise the powers and discharge the functions of the Board in relation to the Sironj region and references in this Act or any other law to the Board shall as from the said date be construed as references to the said Board or authority".

Section 6. - For Section 6, substitute the following,-

"(6) Place of sitting-Subject to the general or special orders of the State Government, it shall be lawful for the Board to sit at any place within the State of Madhya Pradesh".

Section 15. - The word "Rajasthan" shall stand unmodified.

The Rajasthan Review and Validation of Rent Rates (Revival) Act, 1956

(Rajasthan Act 16 of 1956)

Section 2. - For clause (a), substitute the following :-

"(a) 'Board' means the Board of Revenue for the State of Madhya Pradesh or such other authority as the State Government may specify as competent to exercise the powers and discharge the functions of the Board under this Act."

Part F ? Central Act Falling in The Concurrent List

The Indian Partnership Act, 1932

(9 of 1932)

After Section 59, insert-

["59-A. (1) Notwithstanding anything contained in this Chapter the Registrar of Firms, appointed by the State of Madhya Pradesh, may, by order in writing, amend the register by deleting therefrom entries relating to any firm, whose place of business has, by reason of the re-organisation of States, ceased to be situated in the State of Madhya Pradesh.]

[Part F added by M.P.A.L.O (3rd Amendment) Order 1957-Published in M.P. Rajpatra, dated 22-10-1957 at Page 1473.]

The Registrar may likewise amend the register by adding thereto the entries relating to any firm included in the register of another State but whose place of business has, by reason of the said reorganisation of State, become part of the State of Madhya Pradesh:

Provided that the Registrar shall, before passing an order, make such inquiry as he deems necessary.

(2)

After such amendment the Registrar shall cease to perform the functions of a Registrar in respect of any firm the entries relating to which have been deleted as aforesaid and shall perform all the functions of a Registrar in respect of all firms the entries relating to which are added as aforesaid.

(3)

Any person aggrieved by an order under sub-section (1) may appeal to such authority and within such time, as may be specified in this behalf by the State Government of Madhya Pradesh ; and such authority shall pass such order on the appeal as it thinks fit.

(4)

An order of the Registrar under sub-section (1) or where an appeal has been preferred against it under sub-section (3), the order of the appellate authority shall be final.

(5)

The provisions of this section shall cease to be in force from such date as the State Government of Madhya Pradesh may, by notification in the State Gazette, appoint."

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